EMPLOYMENT-BASED IMMIGRATION

How to sponsor an EB-2 employee

A plain-language walkthrough of the advanced-degree green card — what the government asks for, what it costs, and how long each stage actually takes.



START HERE

What EB-2 is, and when it's the right route.

EB-2 is the second employment-based preference category for permanent residence — a green card, not a temporary visa. It is built for roles that genuinely require an advanced degree or exceptional ability, and in almost every case it is the **employer** who petitions, sponsors, and pays.

3

ROUTES INSIDE EB-2

Advanced degree, exceptional ability, and the self-petitioned national interest waiver.

7

STAGES, START TO CARD

Wage determination, recruitment, PERM, I-140, then the final immigrant-visa step.

18–30

MONTHS, TYPICAL CASE

Before any wait for a visa number. Country of birth is the biggest variable.

WHAT'S IN THIS GUIDE

03	The three EB-2 routes	Which one fits the role
04	The process, stage by stage	Stages 1–4
05	Filing, then the final step	Stages 5–7
06	What it costs, and who pays	Fee breakdown
07	A real case, end to end	Manufacturing engineer
08	Questions we get every week	FAQ
09	How we run it with you	Working with Corvell

ELIGIBILITY

Three routes. Pick the one the role actually supports.

Advanced degree

EB-2(A) · PERM REQUIRED

The common route. The job must require a master's or higher, and the employee must hold it — or hold a US bachelor's (or foreign equivalent) plus five years of progressive post-degree experience.

Watch for: the degree requirement has to be real and documented in the job description before recruitment starts. You cannot add it later.

Exceptional ability

EB-2(B) · PERM REQUIRED

For sciences, arts, or business, where the employee's expertise is significantly above the ordinary. Evidenced by meeting at least three of six regulatory criteria — degrees, a decade of experience, licensure, salary level, memberships, or recognized achievements.

Watch for: evidence-heavy — plan document collection early.

National interest waiver

EB-2 NIW · NO PERM

Skips labor certification entirely, and can be self-petitioned without an employer. The endeavour must have substantial merit and national importance, the person must be well positioned to advance it, and waiving the process must benefit the United States.

Watch for: faster on paper — but it is a discretionary, argument-driven case, not a checklist.

RULE OF THUMB

If the position needs the person, sponsor through EB-2(A). If the person's record is the asset and the work has national reach, look at the NIW first — it removes eighteen or more months of process.

Before you can file, you have to test the market.

Everything on this page is labor certification — the Department of Labor stage. It exists to show no able, willing, and qualified US worker was available for the job at the required wage.

01 **Define the role**

1–2 WEEKS

Lock the job title, duties, minimum education, experience, and worksite. This document governs the whole case — every later stage is measured against it.

02 **Prevailing wage determination**

5–8 MONTHS · DOL

DOL sets the minimum wage for that role in that location. You must be able to pay it from the green card onward. This is the longest passive wait in the case — start it first.

03 **Recruitment**

60–75 DAYS

A prescribed set of ads and postings, then a mandatory 30-day quiet period before filing. You review every US applicant in good faith and record why each was not qualified.

04 **File PERM (ETA-9089)**

12–15 MONTHS · DOL

The certification application itself. Approval is the milestone that unlocks the USCIS petition. An audit adds several months, so the recruitment file has to be defensible on day one.

KEEP IN MIND

The filing date of PERM becomes the employee's priority date — their place in the queue. Every week of delay at stage 2 or 3 is a week added to the end of the case.

Then the petition, and the wait for a number.

05 Form I-140 petition

6–9 MONTHS · 15 BUS. DAYS PREMIUM

The employer files with USCIS, proving two things: the employee meets the stated requirements, and the company has the ability to pay the offered wage. Premium processing is available and usually worth it.

06 Wait for the priority date

0 MONTHS TO YEARS

A green card needs an available visa number. For most countries of birth EB-2 moves quickly; for India and China the backlog is long. The monthly Visa Bulletin is the only source of truth here.

07 Final step: I-485 or consular

8–14 MONTHS

Inside the US, the employee adjusts status with Form I-485 — and can add work and travel authorization for the family. Abroad, the case goes to the National Visa Center and a consular interview.

FOR THE EMPLOYER

Your obligations are the wage, the good-faith recruitment record, and the public-access file. Keep them audit-ready — the government can look years later.

FOR THE EMPLOYEE

Keep your status valid throughout, and tell us before any change to your role, salary, address, or travel plans. Timing matters more than paperwork.

IF YOU GET AN RFE

A Request for Evidence is not a denial — it is a question. Most EB-2 requests concern ability to pay or the equivalence of a foreign degree, and both are answerable with documents you already have.

COSTS

What it costs, and who is allowed to pay it.

Government fees are fixed and public. The rule that surprises employers: all labor certification costs — including the attorney fees for that stage — must be paid by the employer, never reimbursed by the employee.

ITEM	STAGE	WHO PAYS	TYPICAL
Prevailing wage determination	PERM	Employer	No fee
Recruitment & advertising	PERM	Employer	$800–$3,000
ETA-9089 filing	PERM	Employer	No fee
Form I-140 petition	USCIS	Employer	$715
Asylum Program Fee	USCIS	Employer	$0–$600
Premium processing (optional)	USCIS	Either	$2,805
Form I-485, per applicant	Final step	Either	$1,440
Consular route instead of I-485	Final step	Either	$560

Government fees current at publication and subject to change without notice; the Asylum Program Fee is reduced for employers with 25 or fewer full-time employees and waived for non-profits. Legal fees are quoted separately as a flat fee per stage.

CASE STUDY

A process engineer, sponsored in 23 months.

A mid-size food processor needed to keep a process engineer who had joined on an H-1B three years earlier. The role required a master's in food science; she held one, plus seven years of experience.

We filed the wage request the week we were retained, ran recruitment while it was pending, and used premium processing on the I-140. One US applicant applied and was documented as not meeting the degree requirement — the file cleared without an audit.

CASE TIMELINE

Retained	Month 0
Wage determination issued	Month 6
Recruitment closed	Month 8
PERM certified	Month 21
I-140 approved (premium)	Month 22
I-485 filed, EAD in hand	Month 23

> **"We never had to ask where the case was. That was the difference."**
>
> DIRECTOR OF PEOPLE — TIDEWATER SEAFOOD COMPANY

23 mo
RETAINER TO FINAL FILING

0
AUDITS OR RFES

31%
BELOW PRIOR COUNSEL'S QUOTE

Composite example based on matters we handle. Prior results do not guarantee a similar outcome.

FAQ

Questions we answer every week.

Can the employee keep working while this runs?	Yes — sponsorship does not change their current status. They keep working on whatever visa they hold, and the green card process runs alongside it.
What if they leave mid-process?	The petition belongs to the sponsoring job, so the case generally ends — but an approved I-140 keeps its priority date, which a future employer can use. Nothing is wasted.
Does the whole family get status?	A spouse and unmarried children under 21 are derivative applicants at the final stage. Filing the I-485 also lets the spouse request an employment authorization document.
Can we pay for a foreign degree evaluation?	Yes, and you should — a credential evaluation showing US equivalence is one of the cheapest ways to prevent an RFE later.
Do we have to raise their salary?	Not during the process — but you must be able to pay the prevailing wage from the moment permanent residence is granted, and you must be able to show the ability to pay at the I-140 stage.
Is EB-2 or EB-3 better?	Whichever the role's real requirements support — and, for some countries of birth, whichever queue is moving faster. We look at both before recruitment is written.
When should we start?	If the employee is on an H-1B, start by year four — the sixth-year extension depends on having a PERM or I-140 on file long enough to qualify.

WORKING WITH CORVELL

You should never have to ask where a case stands.

One intake, then we drive

A single structured intake per case. After that we chase the documents, the ads, and the deadlines — not your HR team.

A dashboard, not a thread

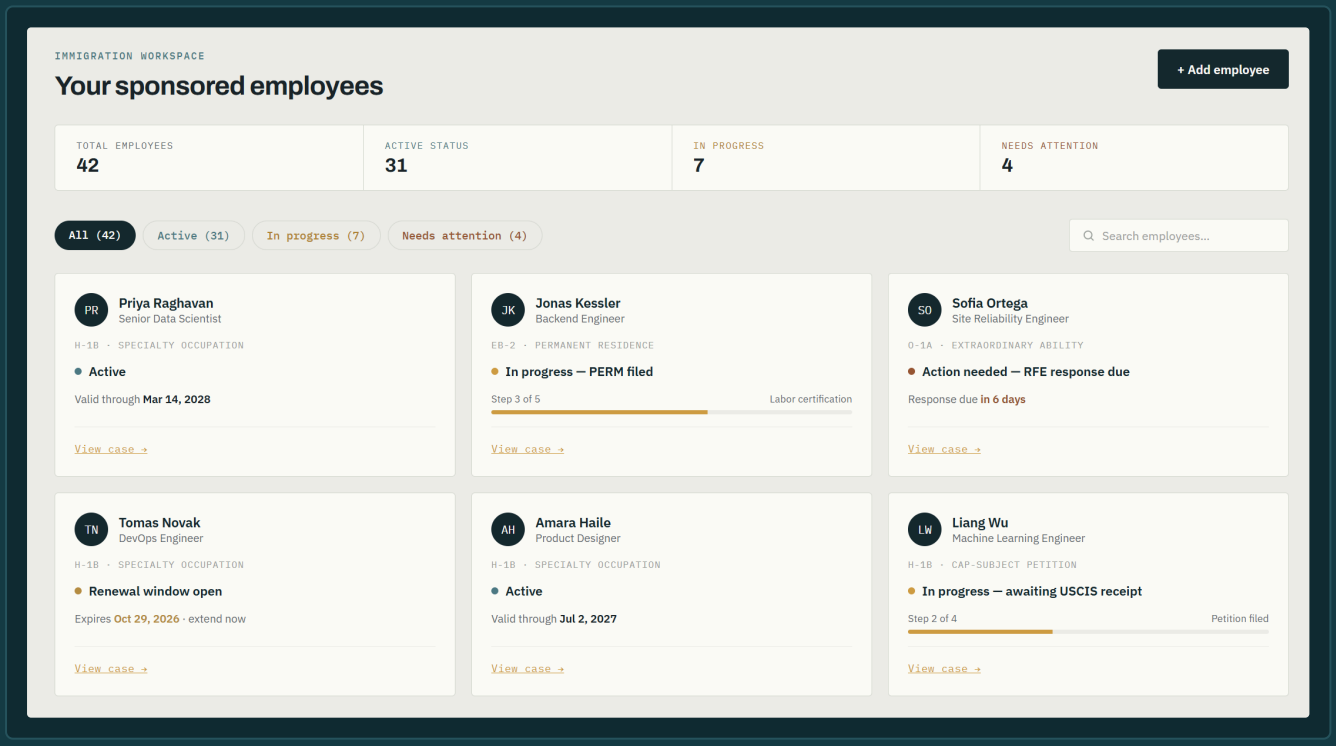
Every matter runs through auditable workflows with live status. No version-guessing, no buried email.

Flat fees, per stage

Quoted before we start, 20–40% below conventional firms, with no junior-associate markups added on the way.

Audit-ready by default

Public-access files and recruitment records are built as we go, so a DOL audit years later is a retrieval task, not a scramble.



NEXT STEP

Send us the role. We'll tell you the route, the cost, and the timeline.

A 30-minute call is usually enough to know whether EB-2 is the right category — and what starting this quarter instead of next would save you.

TALK TO US

+1 (555) 010-0123

hello@example.com

example.com

OFFICE

100 Example Avenue

Suite 200

Anytown, FL 00000

SERVICES

EB-2 · EB-3 · H-1B · H-2B · Compliance & audits

INDUSTRIES

Construction · Hospitality · Healthcare · Technology · Landscaping & grounds · Manufacturing · Senior & long-term care · Food & seafood processing

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